

As passed by the Reconstruction Congress, Section 1 of the Civil Rights Act of 1871 (now colloquially known as § 1983) read this way:

[A]ny person who, under color of any law, statute, ordinance, regulation, custom, or usage of any State, shall subject, or cause to be subjected, any person within the jurisdiction of the United States to the deprivation of any rights, privileges, or immunities secured by the Constitution of the United States, shall, *any such law, statute, ordinance, regulation, custom, or usage of the State to the contrary notwithstanding*, be liable to the party injured in any action at law, suit in equity, or other proper proceeding for redress⁴

The italicized language—the “Notwithstanding Clause,” as Professor Reinert calls it—explicitly displaces common-law defenses.⁵ The language that Congress passed makes clear that § 1983 claims are viable notwithstanding “any such law, statute, ordinance, regulation, custom, or usage of the State to the contrary.” The language is unsubtle and categorical, seemingly erasing any need for unwritten, gap-filling implications, importations, or incorporations. Rights-violating state actors are liable—period—*notwithstanding* any state law to the contrary.

Then things went off the rails, quickly and stealthily. For reasons lost to history, the critical “Notwithstanding Clause” was inexplicably omitted from the first compilation of federal law in 1874.⁶ The Reviser of Federal

⁴ Civil Rights Act of 1871, ch. 22, § 1, 17 Stat. 13 (1871).

⁵ Reinert, *supra* at 235 and n.230 (observing that “this clause meant to encompass state common law principles,” noting that this understanding—that “custom or usage” was synonymous with common law—was, “after all,” why the Court overruled *Swift v. Tyson*, 41 U.S. 1 (1842), in *Erie R.R. Co. v. Tompkins*, 304 U.S. 64 (1938), and also citing *W. Union Tel Co. v. Call Pub. Co.*, 181 U.S. 92, 102 (1901), which in turn cites BLACK’S LAW DICTIONARY for the proposition that common law derives from “usages and customs”).

⁶ Reinert, *supra* at 207, 237.